

The Himachal Pradesh Administrative Tribunal (Procedure) Rules, 2015

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The Himachal Pradesh Administrative Tribunal (Procedure) Rules, 2015

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The Himachal Pradesh Administrative Tribunal (Procedure) Rules, 2015

Rule THE-HIMACHAL-PRADESH-ADMINISTRATIVE-TRIBUNAL-PROCEDURE-RULES-2015 of 2015

Published on 26 May 2015

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The Himachal Pradesh Administrative Tribunal (Procedure) Rules, 2015

Published vide Notification No. G.S.R. 428(E), dated 26th May, 2015

Ministry of Personnel, Public Grievances and Pensions

(Department of Personnel and Training)

G.S.R. 428(E). - In exercise of the powers conferred by clauses (d), (e) and (f) of sub-section (2) of section 35 of the Administrative Tribunals Act, 1985 (

13 of 1985

), the Central Government makes the following rules, namely:-

1.

Short title and commencement.

(1)
These rules may be called the Himachal Pradesh Administrative Tribunal (Procedure) Rules, 2015.

(2)
They shall come into force on the date of their publication in the Official Gazette.

2.
Definition.

- In these rules, -

(a)
"Act" means the Administrative Tribunals Act, 1985 (13 of 1985

);

(b)
"agent" means a person duly authorized by a party to present an application, written reply, rejoinder or any other document on his behalf before the Tribunal;

(c)
"applicant" means person making an application to the Tribunal under section 19;

(d)
"Form" means a Form annexed to these rules;

(e)
"legal practitioner" shall have the same meaning as assigned to it in the Advocates Act, 1961 (25 of 1961);

(f)
"legal representative" means a person who in law represents the estate of the deceased person and includes a person or persons in whom the right to receive pensionary, retirement, terminal or other benefits or family pension, vests;

(g)
"Registrar", in relation to the Tribunal, means the Registrar appointed to the Principal Bench and in relation to each of the other Benches of the Tribunal shall mean the Registrar appointed to whom the powers and functions of the Registrar may be delegated under clauses (2) and (3) of rule 28;

(h)
"Registry" means the registry of the Tribunal or of the Bench of the Tribunal, as the case may be;

(i)
"transferred application" means the suit or other proceeding which has been transferred to the Tribunal under sub-section (1) or sub-section (2) of section 29;

(j)
"Tribunal" means the Himachal Pradesh Administrative Tribunal established under sub-section (2) of section 4 of the Act;

(k)
words and expression used and not defined in these rules, but defined in the Act shall have the same meanings respectively assigned to them in the Act.

3.
Language of the Tribunal.

(1)
The language of the Tribunal shall be English:

Provided that the parties to a proceeding before the Tribunal may file documents drawn up in Hindi, if they so desire:

Provided further that the Bench may -

(a)
permit the use of Hindi in any proceeding;

(b)
direct English translation of any pleading or document to be filed;

(c)
make final orders either in Hindi or in English.

(2)

Notwithstanding anything contained in sub-rule (1), where a final order is made in Hindi, authenticated English translation thereof shall simultaneously be prepared and kept on record and provided to the parties free of cost.

4.

Procedure of filing applications.

(1)

An application to the Tribunal shall be presented in Form I, by the applicant in person or by an agent or by a duly authorized legal practitioner to the Registrar or any other officer authorized by the Registrar to receive the same or be sent by registered post with acknowledgment duly addressed to the Registrar of the Bench concerned.

(2)

The application under sub-rule (1) shall be presented in triplicate in the following two compilations -

(i)

Compilation No. 1. - application along with the impugned order, if any;

(ii)

Compilation No. 2. - all other documents and annexure referred to in the application in a paper book form.

(3)

Where the number of respondents is more than one, as many extra copies of the application in paper-book form as there are respondents together with unused file size envelope bearing the full address of each respondent shall be furnished by the applicant:

Provided that where the number of respondents is more than five, the Registrar may permit the applicant to file the extra copies of the application at the time of issue of notice to the respondents.

(4)

The applicant may attach and present with his application a receipt slip as in Form II, which shall be signed by the Registrar or the officer receiving the application on behalf of the Registrar, in acknowledgment of the receipt of the application.

(5)

Notwithstanding anything contained in sub-rules (1) to (3), the Tribunal may permit,

(a)

more than one person to join together and file a single application if it is satisfied, having regard to the cause and the nature of relief prayed for that they have a common interest in the matter, or

(b)

an association representing the persons desirous of joining in a single application:

Provided, that the application shall disclose the class or grade or categories or persons on whose behalf it has been filed:

Provided further that at least one affected person joins the application.

5.

Presentation and scrutiny of application.

(1)

The Registrar or the officer authorized by him under sub-rule (1) of rule 4 shall endorse on every application the date on which it is presented or deemed to have been presented under that rule and shall sign the endorsement.

(2)

If, on scrutiny, the application is found to be in order, it shall be duly registered and given a serial number.

(3)

If the application, on scrutiny, is found to be defective and the defect noticed is formal in nature, the Registrar may allow the applicant to satisfy the same in his presence, and if the said defect is not formal in nature, the Registrar may allow the applicant a period of the thirty days to rectify the defect.

(4)

Where an application is received by registered post, the applicant shall be informed of the defects, if any, and he shall be required to rectify the same within a period not exceeding thirty days from the date of information to the applicant by the Registrar.

(5)

If the applicant fails to rectify the defect within the time allowed under sub-rules (3) and (4), the Registrar may, by order and for reasons to be recorded in writing, decline to register the application and place the matter before the Bench for appropriate orders.

6.

Place of filling applications.

(1)

An application shall ordinarily be filed by an applicant with the Registrar of the Bench within whose jurisdiction -

(i)

the applicant is posted for the time being, or

(ii)

the cause of action, wholly or in part, has arisen:

Provided that with the leave of the Chairman the application may be filed with the Registrar of the Principal Bench and subject to the orders under section 25, such application shall be heard and disposed of by the bench which has jurisdiction over the matter.

(2)

Notwithstanding anything contained in sub-rule (1) persons who have ceased to be in service by reason of retirement, dismissal or termination of service may at his option file application with the Registrar of the Bench within whose jurisdiction such person is ordinarily residing at the time of filling of the application.

7.

Application fee.

- Every application filed with the Registrar shall be accompanied by a fee of fifty rupees to be remitted in the form of crossed demand draft drawn on a nationalized bank in favor of the Registrar of the concerned Bench and payable at the main Branch or the Bank at the station where the seat of the said Bench is situated or remitted through a crossed Indian Postal Order drawn in favor of the Registrar of the concerned Bench and payable at the Post Office of the station where the Tribunal is situated:

Provided that where the Tribunal permits a single application to be filed, either by more than one person or by an association, the fee payable shall be fifty rupees:

Provided further that where the Tribunal is satisfied that an applicant is unable to pay the prescribed fee on ground of indigence, it may exempt such an applicant from the payment of fee.

8.

Contents of application.

(1)

Every application filed under these rules shall set forth concisely under distinct heads, the grounds for the application and the grounds shall be numbered consecutively.

(2)

Every application including any miscellaneous application shall be typed in double space on one side on thick paper of good quality.

(3)

It shall not be necessary to present a separate application to seek an interim order or direction, if in original application the same is prayed for.

(4)

An applicant may, subsequent to the filing of an application under these rules, apply for an interim order or direction, and the application shall be in Form III.

(5)

Where the applicant seeks condonation of delay, he shall file a separate application supported by an affidavit.

9.

Documents to accompany the application.

(1)

Every application shall be accompanied by the following documents; namely : -

(i)

attested true copy of the order against which the application is filed.

(ii)

copies of the documents relied upon by the applicant and referred to in the application;

(iii)

an index of the documents.

(2)

The documents referred to in sub-rule (1) may be either self attested or attested by a legal practitioner and each document shall be marked serially as Annexures A1, A2, A3 and so on.

(3)

Where an application is filed by any agent, documents authorizing him to act as agent shall also be appended to the application:

Provided that where an application is filed by a legal practitioner, it shall be accompanied by a duly executed 'Vakalatnama'.

10.

Plural remedies.

- An application shall be based upon a single cause of action and may seek one or more reliefs where they are consequential to one another.

11.

Service of notice and processes issued by the Tribunal.

(1)

Notices to be issued by the Tribunal may be served by any of the following modes;

(i)

service by the party himself together with an acknowledgment and an affidavit of service;

(ii)

by hand delivery through process server;

(iii)

by registered post with acknowledgment due;

(iv)

through the concerned head of the Department by any one or more of the modes referred to in clauses (i) to (iii):

Provided that if the Tribunal does not specify the mode of service, notice may be sent by registered post 'with acknowledgment due' and the provision of sub-rule (2) of rule 19A of Order V of First Schedule to the Code of Civil Procedure, 1908 (5 of 1908), shall apply to the mode of service.

(2)

Notwithstanding anything contained in sub-rule (1), the Tribunal may, taking into account the number of respondents and their places of residence or work and other circumstances, direct the notice of the application shall be served upon the respondents in any other manner, including any manner of substituted service, as it appears to the Tribunal just and convenient.

(3)

Notwithstanding anything contained in sub-rule (1), the Tribunal may, having regard to the nature of the case, direct the service of the notice on the Standing Counsel, authorized to accept the service, for any Department or Organization of the Central Government, or an authority, a corporation, a body owned or controlled by the Central Government.

(4)

Every notice issued by the Tribunal shall unless otherwise ordered, be accompanied by a copy of the application and a copy of the impugned order.

(5)

Every applicant shall pay a fee for the service of execution of processes, in respect of an application where the number of respondents exceeds five, as under:-

(i)

a sum of five rupees for each respondent in excess of five respondents; or

(ii)

where the service is in such a manner as the Tribunal may direct under sub-rule (1), such a sum not exceeding the actual charges incurred in effecting clause (i) of the service as may be determined by the Tribunal.

(6)

The fee for the service or execution of processes under sub-rule (2) shall be remitted in the manner prescribed in rule 7 within one week of the date of the order determined the fee or within such extended time as the Registrar may permit.

(7)

Notwithstanding anything contained in sub-rules (1) to (3), if the Tribunal is satisfied that it is not reasonably practicable to serve notice of application upon all the respondents, it may, for reasons to be recorded in writing, direct that the application shall be heard notwithstanding that some of the respondents have not been served with notice of the application:

Provided that no application shall be heard unless -

(i)

notice of the application has been served on the Central Government or the State Government, if such Government is a respondent;

(ii)

notice of the application has been served on the authority which passed the order against which the application has been filed; and

(iii)

the Tribunal is satisfied that the interests of the respondents on whom notice of the application has not been served are adequately and sufficiently represented by the respondents on whom notice of the application has been served.

12.

Filling of reply and other documents by the respondents.

(1)

Each respondents intending to contest the application, shall file in triplicate the reply to the application and the document relied upon, in paper book from with the registry, within one month of the service of notice of the application on him.

(2)

In the reply filed under sub-rule (1), the respondent shall specifically admit, deny or explain the facts stated by the applicant in his application and may also state such additional facts as may be found necessary for the just decision of the case.

(3)

The reply shall be signed and verified as a written statement by the respondent or any other person duly authorized by him in writing in the same manner as provided for in order VI, rule 15 of the code of Civil Procedure, 1908 (5 of 1908).

(4)

The documents referred to in sub-rule (1) shall also be filed alongwith the reply and the same shall be marked as R1, R2, R3 and so on.

(5)

The respondent shall also serve a copy of the reply alongwith documents as mentioned in sub-rule (1) on the applicant or his agent or his legal practitioner, as the case may be, and file proof of service in the Registry.

(6)

The Tribunal may allow filling of the reply after the expiry of the prescribed period.

(7)

The Tribunal may permit the parties to amend the pleadings in the same manner as provided under Order 6, Rule 17 of the Code of Civil Procedure, 1908 (5 of 1908).

13.

Date and place of hearing to be notified.

- The Tribunal shall notify to the parties the date and the place of hearing of the application in such manner as the Chairman may by general or special order direct.

14.

Sitting of Tribunal.

- The Tribunal shall ordinarily hold its sittings at Shimla:

Provided that, if at any time, the Chairman of the Tribunal is satisfied that circumstances exist which render it necessary to have sittings of the Tribunal at any place other than Shimla, he may direct to hold the sittings at any other appropriate place in Himachal Pradesh.

15.

Calendar of cases.

(1)

Each Bench shall draw up a calendar for the hearing of transferred cases and, as far as possible, hear and decide the cases according to the calendar.

(2)

Every application shall be heard and decided as far as possible, within six months from the date of its registration.

(3)

The Tribunal shall have the power to decline an adjournment and also to limit the time for oral arguments.

16.

Action on application for application's default.

(1)

Where on the date fixed for hearing of the application or on any other date to which such hearing may be adjourned the applicant does not appear when the application is called for hearing, the Tribunal may in its discretion, either dismiss the application for default or hear and decide it on merit.

(2)

Where an application has been dismissed for default and the applicant files an application within thirty days from the date of dismissal and satisfies the Tribunal that there was sufficient cause for his non - appearance when the application was called for hearing, the Tribunal shall make an order setting aside the order dismissing the application and restore the same:

Provided that where the case was disposed of on merits, the decision shall not be re-opened except by way of review.

17.

Ex-Parte hearing and disposal of application.

(1)

Where on the date fixed for hearing the application or on any other date to which the hearing may be adjourned, the applicant appears and the respondent does not appear when the application is called for hearing, the Tribunal may, adjourn the hearing, or hear and decide the application ex parte.

(2)

Where an application has been heard ex parte against a respondent or respondents the respondent or respondents may, apply within thirty days from the date of the order to the Tribunal for an order to set it aside and if the respondent or respondents satisfy the Tribunal that the notice was not duly served, or that he or they were prevented by any sufficient cause from appearing when application was called for hearing, the Tribunal may make an order setting aside the ex-parte order as against him or them upon such terms as it thinks fit, and shall appoint a day for proceeding with the application:

Provided that where the ex parte order of the application is of such nature that it cannot be set aside as against one respondent only, it may be set aside as against all or any of the other respondents also:

Provided further that in cases covered by sub-rule (7) of rule 11, the Tribunal shall not set aside ex-parte order of an application merely on the ground that it was not served upon a respondent or respondents.

18.

Application for review.

(1)

No application for review shall be entertained unless it is filed within thirty days from the date of receipt of copy of the order sought to be reviewed.

(2)

A review application shall ordinarily be heard by the same Bench which has passed the order, unless the Chairman may, for reasons to be recorded in writing, direct it to be heard by any other Bench.

(3)

Unless otherwise ordered by the Bench concerned, a review application shall be disposed of by circulation and the Bench may either dismiss the application or direct notice to the opposite party.

(4)

When an application for review of any judgment or order has been made and disposed of, no further application for

review shall be entertained in the same manner.

(5)

No application for review shall be entertained unless it is supported by a duly sworn affidavit indicating therein the source of knowledge, personal or otherwise, and also those which are sworn on the basis of the legal advice.

(6)

The counter affidavit in review application shall also be by a duly sworn affidavit, wherever any averment of fact is disputed.

19.

Substitution of legal representatives.

(1)

In the case of death of a party during the pendency of the proceedings before the Tribunal, the legal representative of the deceased party may apply within ninety days of the date of death for being brought on record as necessary parties.

(2)

Where no application is received from the legal representative within the period specified in sub-rule (1), the proceedings against the deceased party shall abate:

Provided that on good and sufficient reasons, the Tribunal, on an application, may set aside the order of abatement and substitute the legal representative.

20.

Adjournment of hearing.

- The Tribunal may if sufficient cause is shown at any stage of proceedings, grant time to the parties or any of them and adjourn the hearing of the application and the Tribunal may make such order as it thinks fit with respect to the costs occasioned by the adjournment.

21.

Order to be signed and dated.

(1)

Every order of the Tribunal shall be signed by the Member or Members constituting the Bench, which pronounced the order.

(2)

The order shall be pronounced in open court.

22.

Publication of orders.

(1)

The Tribunal may publish its decision which is deemed fit for publication, in a report entitled "Indian Law Report Central Administrative Tribunal.

(2)

Such of the order of the Tribunal as are deemed fit for publication in any other authoritative report or the press may be released for publication on such terms and conditions as the Chairman may specify by general or special order.

23.

Communication of order to parties.

(1)

Every interim order, granting or refusing or modifying interim relief and final order shall be communicated to the applicant and to the concerned respondent or to their Counsels, either by hand delivery or by post, free of cost:

Provided that unless ordered otherwise by a Bench, a copy of the final order may not be sent to any respondent who has not entered appearance:

24.

Registration of clerks of legal practitioner.

(1)

A legal practitioner desirous of registering his clerk shall make an application to the Registrar in form IV and on such application being allowed by the Registrar, his name shall be entered in the Registrar of Clerks.

(2)

After registration of the clerk, the registrar shall direct the issue of an identity card to him which shall be non-transferable

and shall be produced by the holder upon request by an officer or other employee of the Tribunal authorized in this behalf and the identity card shall be issued under the signature of the Deputy Registrar of the Bench concerned.

(3)

A register of all the clerks registered under sub-rule (2) shall be maintained in the office of the Registrar of each Bench.

(4)

A legal practitioner shall have at a time not more than two registered clerks unless the Registrar of each Bench.

(5)

Whenever a legal practitioner ceases to employ a registered clerk, he shall notify the fact at once to the Registrar by means of a letter enclosing therewith the identity card issued to his clerk by the registry, and on receipt of the letter, the name of the said registered clerk shall be struck off from the register.

25.

No fee for inspections of records.

- No fee shall be charged for inspecting the records of a pending application by a party thereto.

26.

Orders and directions in certain cases.

- The Tribunal may make such orders or give such directions as may be necessary or expedient to give effect or in relation to its orders or to prevent abuse of its process or to secure the ends of justice.

27.

Working hours of the Tribunal.

- Except on Sundays and other public holidays, the office of the Tribunal shall, subject to any order made by the Chairman, remain open from 10.00 a.m. to 5 p.m.

28.

Sitting hours of the Tribunal.

- The sitting hours of the Tribunal (including a vacation Bench) shall ordinarily be from 10.30 a.m. to 1.30 p.m. and 2.30 p.m. to 5 p.m. subject to any general or special order made by the Chairman.

29.

Powers and functions of the Registrar.

(1)

The Registrar shall have the custody of the records of the Tribunal and shall exercise such other functions as are assigned to him under these rules or by the Chairman or a Member of the Bench concerned by separate order.

(2)

The Registrar may, with the approval of the Chairman delegate to the [Deputy Registrar]
[Substituted 'Assistant Registrar' by Notification No. G.S.R. 592(E), dated 9.6.2016 (w.e.f. 26.5.2015).]
any function or power required by these rules to be performed or exercised by the Registrar.

(3)

In the absence of the Registrar, the [Deputy Registrar]

[Substituted 'Assistant Registrar' by Notification No. G.S.R. 592(E), dated 9.6.2016 (w.e.f. 26.5.2015).]

or any other officer to whom the powers and functions of the Registrar are delegated by the Chairman, as the case may be, may exercise the powers and functions of the Registrar.

(4)

The official seal shall be kept in the custody of the Registrar.

(5)

Subject to any general or special direction by the Chairman, the seal of the Tribunal shall not be affixed to any order, summons or other process save under the authority in writing by the Registrar or the Assistant Registrar.

(6)

The seal of the Tribunal shall not be affixed to any certified copy issued by the Tribunal save under the authority in writing by the Registrar or the Assistant Registrar.

30.

Additional powers and duties of Registrar.

- In addition to the powers conferred, elsewhere in these rules, the Registrar shall have the following powers and duties subject to any general or special order of the Chairman, namely :-

- (i)
to receive every application or other document including a transferred application;
- (ii)
to decide every question arising out of the scrutiny of the application before registration;
- (iii)
to require any application presented to the Tribunal to be amended in accordance with the Act and the rules;
- (iv)
to fix the date of first hearing of the application or other proceeding and issue notice thereof subject to the direction of the Bench;
- (v)
to direct any formal amendment of records;
- (vi)
to order grant of copies of any document to parties to the proceedings;
- (vii)
to grant leave to inspect the records of the Tribunal;
- (viii)
to dispose of any matter relating to the service of notices or other processes, applications for the issue of fresh notices or for extending the time for filing the applications, to grant time not exceeding thirty days for filing a reply or rejoinder if any, and to place the matter before the Bench for appropriate orders after the expiry of the aforesaid period;
- (ix)
to requisition records from the custody of any court or other authority ;
- (x)
to receive application within ninety days from the date of death for substitution of legal representatives of the deceased parties during the pendency of the application;
- (xi)
to receive and dispose of applications for substitution, except where the substitution does not involve setting aside an order of abatement ; and
- (xii)
to receive and dispose of applications by parties for return of documents.

31.

Additional powers of the Registrar of the Principal Bench.

- The Registrar of Principal Bench shall have the power to call for information and records and to inspect or cause to be inspected the registry of the other Benches under general or special orders as may be issued by the Chairman from time to time.

32.

Seal and emblem.

- The official seal and emblem of the Tribunal shall be such as the Central Government may specify.

33.

Dress of the Members and staff of the Tribunal.

- The dress for the Members of the Tribunal (including Chairman) and members of the staff of the Tribunal shall be such as the Chairman may specify.

34.

Dress of the parties.

- A legal practitioner or, as the case may be, a presenting officer shall appear before the Tribunal in his professional dress, if any, and if there is no such dress, -

- (i)
if a male, in a closed, collared coat and trousers or in a lounge suit;
- (ii)
if a female, in a saree or any other customary dress of a sober colour.

Form I

[Rule 4]

Application under section 19 of the Administrative Tribunals Act, 1985

In the Himachal Pradesh Administrative Tribunal

Title of the Case : ----- Bench

Index

Sl. Nos.

Description of documents relied upon

Page No.

1.

Application

2.

3.

4.

5.

6.

Signature of the applicant

For use in Tribunal's Office

Date of filing or date of Receipt by Post Registration No. Signature of Registrar

In the Himachal Pradesh Administrative Tribunal Bench

Between

A.B. (add description such as son of, resident of and place of employment or last employed.)

Applicant

And

C.D. (add description and the residential or official address on which the service of notices is to be effected on the respondent or respondents. The details of each respondent are to be given in a chronological order.)

Respondent

Details of Application:

1. Particulars of the order against which the application is made:

(Particulars of the order giving the details like the number, date and the authority which has passed the order, against which the application is made).

2. Jurisdiction of the Tribunal :

The applicant declares that the subject matter of the order against which he wants redressal is within the jurisdiction of the Tribunal.

3. Limitation :

The applicant further declares that the application is within the limitation period prescribed in section 21 of the Administrative Tribunals Act, 1985.

4. Facts of the case :

(Give here a concise statement of facts in a chronological order, each paragraph containing as nearly as possible a separate issue or fact).

5. Grounds for relief with legal provisions:

6. Details of the remedies exhausted :

The applicant declares that he has availed of all the remedies available to him under the relevant service rules, etc.

(Give here chronologically the details of representations made and the outcome to such representations with reference to the number of Annexure to be given in support thereof).

7. Matters not previously filed or pending with any other court :

The applicant further declares that he had not previously filed any application, writ petition or suit regarding the matter in respect of which this application has been made, before any court or any other authority or any other Bench of the Tribunal nor any such application, writ petition or suit is pending before any of them.

In case the applicants had previously filed any such application, writ petition or suit, the stage at which it is pending, and if decided, the list of the decisions should be given with reference to the number of Annexure to be given in support thereof.

8. Relief(s) sought :

In view of the facts mentioned in para 6 above the applicant prays for the following relief(s) .-

(Specify below the relief(s) sought explaining the grounds for such relief(s) and the legal provisions, if any, relied upon).

9. Interim order, if any prayed for :

Pending final decision on the application, the applicant seeks the following interim relief :

(Give here the nature of the interim relief prayed for).

10. In the event of application being sent registered post, it may be stated whether the applicant desires to have oral hearing at the admission stage and if so, he shall attach a self addressed post card or acknowledgment card, at which intimation regarding the date of hearing could be sent to him.

11. Particulars of Banks Draft/Postal Order filed in respect of the application fee.

12. List of enclosures:

- 1.
- 2.
- 3.
- 4.

Verification

I (Name of the applicant) S/o, W/o, D/o, age working as in the office of, resident of, do hereby verify that the contents of paras to are true to my personal knowledge and paras to believed to be true on legal advice and that I have not suppressed any material fact.

Date :

Place :

Signature of the applicant

Form II

[Rule 4 (4)]

In the Himachal Pradesh Administrative Tribunal

----- Bench

Receipt Slip

Receipt of the application filed in the Central Administrative Tribunal Bench by Shri/ Kum/ Smt. in the Ministry/ Department/ Office of residing at is hereby acknowledged.

For Registrar

Dated : Himachal Pradesh Administrative Tribunal

Seal : Bench

Form III

[Rule 8 (3)]

In the Himachal Pradesh Administrative Tribunal

..... Bench

Misc. Application No. of

In

Original/Transferred Application No. of

XXX Applicant/Petitioner

Versus

YYY Respondent/Applicant

Brief facts leading to the application.

Relief or Payer :

Verification :

I (Name of the applicant) S/o, W/o, D/o age working as

..... in the office of, resident of, do hereby verify that the contents of para to are true on legal advice and that I have not suppressed, any material fact.

Date :

Signature of the applicant

Place :

Signature of the Advocate/ Agent

Form IV

[Rule 2 (2)]

Application for the Registration of a Clerk

In the Himachal Pradesh Administrative Tribunal

..... Bench

1. Name of legal practitioner on whose behalf the clerk is to be registered.

2. Particulars of the clerk to be registered

(i) Full name :

Passport size Photograph to be pasted here.

(in capital)

(ii) Father's name :

(iii) Age and date of Birth :

(iv) Place of birth :

(v) Nationality :

(vi) Educational qualification :

(vii) Particulars of previous employment, if any :

I, (Clerk above-named) do hereby affirm that the particulars relating to me given above are true.

Signature of Clerk

3. Whether the legal practitioner has another clerk already registered under him and whether the clerk sought to be registered is in lieu of or in addition to the clerk already registered.

4. Whether the clerk sought to be registered is hereby registered as a clerk of any other legal practitioner and if so, the name of such practitioner.

I, (legal practitioner) certify that the particulars given above are true to the best of my information and belief and that I am not aware of any fact which would render unsuitable the registration of the said (name) as a clerk. Further, I enclose, Postal Order for Rs. 10/- being the costs of Identity Card along with 2 passport size photographs of the applicant duly attested by me.

Signature of the Legal Practitioner

Dated :

To

The Registrar

Himachal Pradesh Administrative Tribunal

..... Bench

Related AI tags, queries and research notes

Translation